

Section 28 in The Hindu Marriage Act, 1955

28. Appeals from decrees and orders.-

(1)All decrees made by the court in any proceeding under this Act shall, subject to the provisions of sub-section (3), be appealable as decrees of the court made in the exercise of its original civil jurisdiction, and every such appeal shall lie to the court to which appeals ordinarily lie from the decisions of the court given in exercise of its original civil jurisdiction.(2)Orders made by the court in any proceeding under this Act under section 25 or section 26 shall, subject to the provisions of sub-section (3), be appealable if they are not interim orders, and every such appeal shall lie to the court to which appeals ordinarily lie from the decisions of the court given in exercise of its original civil jurisdiction.(3)There shall be no appeal under this section on the subject of costs only.(4)Every appeal under this section shall be preferred within a period of ninety days from the date of the decree or order.